

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	17-07-2026 16:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	17-07-2026 16:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Power
विभाग का नाम / Department Name	Na
संगठन का नाम / Organisation Name	Ntpc Limited
कार्यालय का नाम / Office Name	Cg
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id : gbirganthia@ntpc.co.in Buyer Email id: hariomkumar@ntpc.co.in
वस्तु श्रेणी / Item Category	Facility Management Services - LumpSum Based - Industrial; Biennial Contract for CHP operation support Staff for NSTPS Nabinagar; Consumables to be provided by service provider (inclusive in contract cost)
अनुबंध अवधि / Contract Period	2 Year(s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Certificate (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है / Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या / Minimum number of bids required to disable automatic bid extension	3

बिड विवरण/Bid Details	
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	3 Days
Payment Timelines	Payments shall be made to the Seller within 30 days of issue service delivery acceptance certificate (SDAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	2000000

ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने हैं। एमएसई कैटे के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

DGM
C&M-1, USSC Naya Raipur, WR II (Detailed address in NIT)
(Ntpc Ltd)

UIN Number NCTGC2415P

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

- 1. Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has have quoted price within $L-1+ 15\%$ (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for $\%$ (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
- 2. If L-1 is not an MSE and MSE Service Provider (s) has/have quoted price within $L-1+ 15\%$ of margin of purchase preference /price band as defined in the relevant policy, then 100% order quantity will be awarded to such MSE bidder subject to acceptance of L1 bid price.**
- 3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.**

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Details of the premise:[1783078787.pdf](#)

Scope of work:[1783078793.pdf](#)

Facility Management Services - LumpSum Based - Industrial; Biennial Contract For CHP Operation Support Staff For NSTPS Nabinagar; Consumables To Be Provided By Service Provider (inclusive In Contract Cost) (1)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Type of Premises	Industrial
Type of services required	Biennial Contract for CHP operation support Staff for NSTPS Nabinagar
Cost for Consumables/ Materials	Consumables to be provided by service provider (inclusive in contract cost)
Service component	Biennial Contract for CHP operation support Staff for NSTPS Nabinagar
एडऑन /Addon(s)	

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer	No
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अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

प्रेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	Quantity	अतिरिक्त आवश्यकता /Additional Requirement
1	Kundan Kumar	824303,Shivanpur PO-Ankhora Railway Station Bihar Aurangabad	Project / Lumpsum Based	N/A

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE 25% : The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, the contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration.

For lumpsum-based service contracts, the buyer may increase the scope of work and contract value up to 25 percent with the consent of the service provider

2. Buyer Added Bid Specific ATC

Additional Terms and Conditions (ATC)

UNIFIED SHARED SERVICE CENTRE, CPG-1, RAIPUR CONTRACT & MATERIAL DEPTT

NIT / Tender Enquiry NO. NTPC/USSC-CPG1/ 9900325361

Name of Package: Biennial Contract for CHP operation support Staff for I STPS Nabinagar

Additional Terms & Conditions (ATC) of this tender comprises along with the following documents:

1. Section	Documents	Available at GEM Portal under Heading
I	Invitation for Bids (IFB)/Tender Enquiry/Notice Inviting Tender (NIT)	Details of Premises
II	Instructions to Bidders (ITB)	Details of Premises
III	General Conditions of Contract (GCC)	Details of Premises
IV	Special Conditions of Contract (SCC)	Details of Premises

V	Technical Specifications and Bid Drawings	Scope of Work
VI	Schedule of Quantities (SOQ) / Bill of Materials (BOQ)	Scope of Work
VII	Forms and Procedures	Details of Premises
	Attachment-13	Attached at Bottom
VIII	INTEGRITY PACT	Details of Premises

2. **A complete set of documents as mentioned above are enclosed under “Any Other Documents As Per Specific Requirement of Buyer-1”.**
3. Terms and Conditions stipulated in ATC will supersede those in GeM GTC and S TC in case of any conflicting provisions.
4. Bidders are required to submit the documents as mentioned in the check list appended below while submitting their bid and submit the duly filled check list online on GeM portal.

Formats of the documents required to be submitted as per this check list can be referred from “Section-VII: Forms and Procedures” enclosed under ‘Instructions to Bidders’ and **“Any Other Documents as Per Specific Requirement of Buyer-1”.**

5. MSE Benefits are Applicable for this work. MSE bidders seeking exemption from EMD and Purchase Preference shall select appropriate option on GeM portal (separately for each i.e. EMD & purchase preference) and should enclose a attested/self-certified copy of UDYAM registration certificate, failing which they run the risk of their bid being passed over as ineligible for the benefits applicable to MSEs
6. Instructions for filling the Price Bid: **Refer the Section – 6 BOQ**
7. **A new functionality is introduced in GeM portal. Bidders may please note that GeM is capturing and showing the IP addresses used by the Buyer and the Bidder(s) /Seller(s). The received bids having matching/common IP address with either Bidder(s)/Seller(s) or Buyer, shall be outrightly rejected & shall not be considered for further evaluation.**
8. Bidders are advised to mention their prices at the designated place on the GeM portal only as the same shall only be considered for evaluation and price content mentioned / uploaded along with any other documents in their bid shall not be

considered in any case.

- a. After the award of the contract, Agency (To whom PO is placed) is to submit the security deposit as per NTPC terms and conditions.

Check List

Sl. No.	Document Required	Action required	Submitted Please tick (✓)
1	Attachment 1: Bid Security / EMD (as per ITB Clause No. 14.0)-		
	(i) Bank Guarantee, strictly in the format provided in the tender document, Amount as per NIT, validity (225 days) as per tender document.	To be uploaded online and Original BG to be submitted physically	
	Or		
	(ii) MSE (UDYAM only) certificate towards exemption of Bid Security / EMD.	To select appropriate option in the GeM portal and upload the copy of the UDYAM registration certificate	
2	Attachment 2: Authority to Sign the bid	To be uploaded online	
3	Attachment 3: Bidder's Qualifications - Copies of Documentary evidence in support of the qualification criteria as per ITB Clause No. 5.4.	To be uploaded online duly filled in	
	Undertaking duly certified and verified documents from their Statutory Auditors or specified TPIA in support of meeting Technical QR	To be uploaded online duly filled in	
4	Attachment 5: Equipment/ Machinery deployment Schedule	To be uploaded online duly filled in	
5	Attachment 6: General Declaration of Bidder	To be declared through undertaking at Attachment 13	
6	Attachment 7: Electronic Fund Transfer (EFT) Authorisation Form	To be uploaded online duly filled in and authenticated from the concerned bank	
7	Attachment 8: Details of PF, ESI, PAN and GSTIN Registration	To be uploaded online duly filled in	
8	Attachment 9: Declaration Regarding GST	To be uploaded online duly filled in	
9	Attachment 10: Technical Compliance	To be uploaded online duly filled in	

10	Attachment 11: Declaration of Local Content	To be declared through undertaking at Attachment 13	
11	Declaration of conflict of interest	To be declared through undertaking at Attachment 13	
12	Attachment 12: Integrity Pact as per Performa (pre-signed by employer) duly signed & Stamped at each page	To be declared through undertaking at Attachment 13	applicable / Not applicable
13	Attachment 12A: Tripartite Integrity Pact as per Performa (pre-signed by employer) duly signed & Stamped at each page	To be declared through undertaking at Attachment 13	applicable / Not applicable
14	Attachment 12B: Details of Foreign Principals of Indian Bidders <i>[if applicable]</i>	Not applicable	
15	Declaration on Anti-Bribery and Anti-Corruption (ABAC) Policy	To be declared through undertaking at Attachment 13	
16	Attachment 13: Undertaking for compliance of Important Conditions of Tender	To be uploaded online	
17.	Attachment no: 14 : Declaration regarding insolvency, bankruptcy and Liquidation	To be declared through undertaking at Attachment 13	
18	Schedule of Quantities & Prices i.e. Financial Bid (Price Bid)	To be filled online on GeM portal	

Bidder's Sign & Stamp

ATTACHMENT -

Name of contract: Biennial Contract for CHP operation support Staff for NSTP! Nabinagar

(Must submit this with NIT with sign and stamp or digitally signed)

(UNDERTAKING FOR COMPLIANCE OF IMPORTANT CONDITIONS OF TENDER BY BIDDER)

(To be uploaded online in Technical Cover/Envelope)

To,

NTPC Ltd.,
CPG-1, USSC Raipur

Dear Sirs,

We hereby confirm that, we have carefully read the provisions of the following undertakings and accepting the

ame:

S l. N o .	Underta king Typ e	Provisions of Undertaking	Remarks
1	Nil Devia tion Cert ificate	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you certify full compliance to all provisions of Bid Documents?” Acceptance of above condition shall be considered as bidder's confirmation to the following: (a) The provisions of Bidding Documents read in Conjunction with Amendment(s)/ Clarification(s)/ Addenda/ Errata (if any) are acceptable and no deviation has been taken in this regard. (b) Any deviation to Bidding Documents and its subsequent Amendment(s)/ Clarifications(s)/ Addenda/ Errata/ Minutes of Clarification Meeting (if any) as mentioned at (a) above found anywhere in Price Bid Proposal, implicit or explicit, shall stand unconditionally withdrawn, without any cost implication whatsoever to Employer, failing which the Earnest Money Deposit shall be forfeited.	Accepted
2	Declarati on on Q ualifying Require ments	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you certify full compliance on Qualifying Requirements” Acceptance of above condition shall be considered as bidder's confirmation to the following: a) The number of reference Plants/Orders quoted by Bidder in the bid, for establishing compliance to the specified Qualifying Requirement (QR), are in accordance with the provision specified above. b) The reference Plants/ Orders/ declared, shall only be considered for evaluation/ establishing compliance to Qualifying Requirement (QR). c) No change or substitution in respect of reference Plants/Orders for meeting the specified Qualifying Requirement (QR) shall be offered by the bidder.	Accepted
3	Declarati on on Sa fety Policy	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you accept the Safety Policy of NTPC”. Acceptance of above condition shall be considered as bidder's confirmation that they shall abide by Safety Policy of the Employer as per the provisions of ITB Sub-Clause 11.4.10.	Accepted

4	Declaration on Debarment from Business Dealings Policy	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you accept Debarment from Business Dealings Policy of NTPC” Acceptance of above condition shall be considered as bidder's confirmation to the following conditions: (1) Bidder has read the contents of Debarment Policy (version mentioned in SCC) displayed on the website www.ntpc.co.in / www.ntpctender.ntpc.co.in and agreed to abide by this policy. a) Bidder has not been Banned / Blacklisted as on date of submission of bid by Ministry of Power or Deptt. Of Expenditure, Ministry of Finance. b) Bidder has not employed any public servant dismissed / removed or person convicted for an offence involving corruption or abetment of such offences. c) Bidder's Director(s) / Owner(s) / Proprietor / Partner(s) have not been convicted by any court of law for offences involving corrupt and fraudulent practices including moral turpitude in relation to business dealings with Government of India or NTPC or NTPC's group companies during the last five years. (2) Bidder further confirms as under: that if at any point subsequent to award of Contract, the declarations given above are found to be incorrect, NTPC / Employer shall have the full right to terminate the Contract and take any action as per applicable laws for breach of contract including forfeiture of Bid Security/Performance Bank Guarantee.	Accepted
5	Declaration on Fraud Prevention Policy	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you accept the Fraud Prevention Policy of NTPC”. Acceptance of above condition shall be considered as bidder's confirmation that they shall abide by Fraud Prevention Policy of the Employer displayed on NTPC's website http://www.ntpctender.com indicating his compliance to the provisions of ITB Sub-Clause 29.	Accepted

6	Declaration on Local Content	Bidders are required to confirm acceptance of the same by accepting the following condition: “Confirm that you are a LOCAL SUPPLIER, and the LOCAL CONTENT included in the PACKAGE FOR COMPLETE SCOPE OF WORK meets the MINIMUM LOCAL CONTENT requirements of the Tender.” Acceptance of above condition shall be considered as Bidder's confirmation that Bidder is meeting the requirement of fulfilling the requirements of Local content for Class-I Local Supplier with MLC- 50%. We further confirm that we are presently not debarred / banned by any other procuring entity for violation of 'Public Procurement (Preference to Make in India), Order 2017' (PPP-MII Order) dated 15.06.2017 and its subsequent revisions /amendments issued by Department for Promotion of Industry and Internal trade (DPIIT) In case aforesaid Confirmation/Certificate furnished by Contractor/Vendor is not in line with the declaration in respect of Local content in their bid, same shall be treated as false declaration and will be dealt in line with the Fraud Prevention Policy of NTPC.	Accepted
7	Declaration on Restrictions on procurement from a Bidder of a country which shares a land border with India	Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you certify full compliance on clause as per tender documents on Restrictions on procurement from a Bidder of a country which shares a land border with India?” / “Do you certify full compliance to all provisions of Bid Documents?” Acceptance of above condition shall be considered as Bidder's confirmation that Bidder has read and understood the ITB Clause regarding “Restrictions on procurement from a Bidder of a country which shares a land border with India” and its bid is in compliance to this clause. In case it is established that Bidder has provided any false information in pursuance of the aforesaid ITB Clause, while competing for this contract, then its bid shall be rejected. In case of a successful bidder, if it is established that the Bidder has not complied with terms of aforesaid ITB Clause, during execution of contract, this would be a sufficient ground for immediate termination of the contract as per GCC Clause titled 'Termination for Contractor's Default' and shall be dealt accordingly.	Accepted

8	Declaration on "Conflict of Interest"	Bidders are required to confirm acceptance of the same by accepting the following condition: "Do you certify full compliance to all provisions of Bidding Document?" Acceptance of above condition shall be considered as Bidder's confirmation that Bidder has read and understood the ITB & SCC Clause regarding "Conflict of Interest" and its bid is in compliance to this clause. In case it is established that Bidder has provided any false information in pursuance of the aforesaid ITB & SCC Clause, while competing for this contract, then its bid shall be rejected and bid security shall be forfeited. In case of a successful bidder, if it is established that the Bidder has not complied with terms of aforesaid ITB & SCC Clause, during execution of contract, this would be considered as fraudulent practices as mentioned in para 5.1 (j) of "Policy for Debarment from Business Dealings" and shall be dealt accordingly.	Accepted
9	Declaration on Anti-Bribery and Anti-Corruption (ABAC) Policy	The Bidder and its employees along with its Associate/ Collaborator/ Sub Contractors / Sub-Vendors / Consultants / Service Providers and all other persons associated with business of Employer shall strictly adhere to Anti-Bribery and Anti-Corruption (ABAC) Policy of Employer displayed on tender website https://ntpctender.ntpc.co.in/. Bidders shall certify their compliance on "Anti-Bribery and Anti-Corruption (ABAC) Policy" of Employer by accepting the following: "Do you certify full compliance to all provisions of Bidding Document?" Acceptance of above condition shall be considered as bidder's confirmation that they and their employees along with their associate / collaborator/ subcontractors / sub vendors / consultants / service providers shall strictly abide by "Anti- Bribery and Anti-Corruption (ABAC) Policy" of Employer as displayed on tender website at https://ntpctender.ntpc.co.in/ under section 'policy docs' and undertake that they represent and confirm that they are aware of, understand, and will comply with all applicable laws and regulations relating to anticorruption and anti-bribery and the ABAC Policy of Employer.	Accepted

10	Declaration regarding insolvency, bankruptcy and Liquidation	Bidder and along with its Parent/Holding/Subsidiary Company, Associate or Collaborator/ Technology Provider are required to unconditionally accept all the conditions of the "Declaration regarding insolvency, bankruptcy and Liquidation)" as per Attachment to the Bidding Documents . Bidders are required to confirm acceptance of the same by accepting the following condition: “Do you certify full compliance to all provisions of Bidding Document?” Acceptance of above condition shall be considered that Bidder and along with its Parent/Holding/Subsidiary Company, Associate or Collaborator/ Technology Provider has read and understood the ITB & Forms and procedures (Attachment -14) clauses regarding “insolvency , bankruptcy and Liquidation” and its bid is in compliance to this clause. It is understood that if any part of this declaration is found to be false, the Employer shall have the right to unconditionally, immediately and outrightly reject the bid and forfeit the Bid Security/ EMD. Further, in case the bid has already culminated into a Contract, the Employer shall be entitled to terminate the Contract, without prejudice to any other rights or remedies available to the Employer.	Accepted
11	Acceptance of Integrity Pact (Applicable/ Not applicable)	Bidders are required to unconditionally accept all the conditions of the "Integrity Pact (IP)" as per Attachment to the Bidding Documents which has been pre-signed by the Employer. Bidders shall certify their compliance on "Integrity Pact " by accepting the following: “Do you certify full compliance to all provisions of Bidding Document?” On Bidder’s acceptance to the above GTE condition, Bidder confirms to have read, understood and unconditionally accept & commit to all the contents, terms, conditions and undertakings mentioned in the Integrity Pact which has been presigned by the Employer and enclosed with the Bidding Documents. Where the Joint Venture(s) / Consortium are permitted to participate in the bid, acceptance of above GTE by bidder shall mean that all the JV Partner(s)/ Consortium members have read, understood and unconditionally accepted & committed to all the contents, terms, conditions and undertakings mentioned in the Integrity Pact which has been presigned by the Employer and enclosed with the Bidding Documents. On Acceptance of the above GTE, Integrity Pact shall be considered signed by the Bidder / JV Partner(s)/ Consortium members and the same shall come into force from the date of submission of bid. It may also be noted that subsequent to Employer’s evaluation of Bids, resulting into award of Contract to a particular Bidder, the Integrity Pact so submitted shall form an integral part of the Contract	Accepted

Accepting above conditions

Date:

.....

Signature.....

Place:

Name of Authorised person

.....

Designation.....

Common Seal.....

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अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this

bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020 and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भा के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला स प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इस अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा। In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any failure to do so, declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---